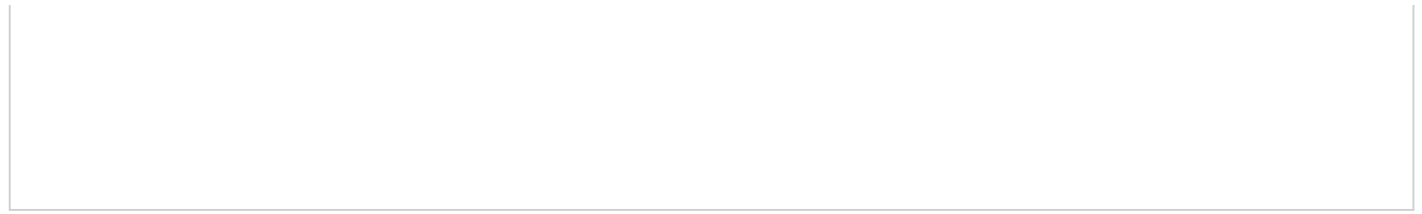


Notes to Chapter 42

1. For the purposes of this Chapter, the term "leather" includes chamois (including combination chamois) leather, patent leather, patent laminated leather and metallised leather.
2. This Chapter does not cover :
 - a. Sterile surgical catgut or similar sterile suture materials (heading [30.06](#));
 - b. Articles of apparel or clothing accessories (except gloves, mittens or mitts), lined with furskin or artificial fur or to which furskin or artificial fur is attached on the outside except as mere trimming (heading [43.03](#) or [43.04](#));
 - c. Made up articles of netting (heading [56.08](#));
 - d. Articles of Chapter [64](#);
 - e. Headgear or parts thereof of Chapter [65](#);
 - f. Whips, riding-crops or other articles of heading [66.02](#);
 - g. Cuff-links, bracelets or other imitation jewellery (heading [71.17](#));
 - h. Fittings or trimmings for harness, such as stirrups, bits, horse brasses and buckles, separately presented (generally Section [XV](#));
 - ij. Strings, skins for drums or the like, or other parts of musical instruments (heading [92.09](#));
 - k. Articles of Chapter [94](#) (for example, furniture, luminaires and lighting fittings);
 - l. Articles of Chapter [95](#) (for example, toys, games, sports requisites); or
 - m. Buttons, press-fasteners, snap-fasteners, press-studs, button moulds or other parts of these articles, button blanks, of heading [96.06](#).
3. A. In addition to the provisions of Note 2 above, heading [42.02](#) does not cover :
 - a. Bags made of sheeting of plastics, whether or not printed, with handles, not designed for prolonged use (heading [39.23](#));
 - b. Articles of plaiting materials (heading [46.02](#)).B. Articles of headings [42.02](#) and [42.03](#) which have parts of precious metal or metal clad with precious metal, of natural or cultured pearls, of precious or semi-precious stones (natural, synthetic or reconstructed) remain classified in those headings even if such parts constitute more than minor character. If, on the other hand, the parts give the articles their essential character, the articles are to be classified in Chapter [71](#).
4. For the purposes of heading [42.03](#), the expression "articles of apparel and clothing accessories" applies, *inter alia*, to gloves, mittens and mitts (including those for sport or for protection), aprons and other protective clothing, braces, belts, bandoliers and wrist straps, but excluding watch straps (heading [91.13](#)).



Notes to Chapter 61

1. This Chapter applies only to made up knitted or crocheted articles.
2. This Chapter does not cover :
 - a. Goods of heading [62.12](#);
 - b. Worn clothing or other worn articles of heading [63.09](#); or
 - c. Orthopaedic appliances, surgical belts, trusses or the like (heading [90.21](#)).
3. For the purposes of headings [61.03](#) and [61.04](#) :
 - a. The term "suit" means a set of garments composed of two or three pieces made up, in respect of their outer surface, in identical fabric and comprising :
 - one suit coat or jacket the outer shell of which, exclusive of sleeves, consists of four or more panels, designed to cover the upper part of the body, possibly with a tailored waistcoat in addition whose front is made from the same fabric as the outer surface of the other components of the set and whose back is made from the same fabric as the lining of the suit coat or jacket; and
 - one garment designed to cover the lower part of the body and consisting of trousers, breeches or shorts (other than swimwear), a skirt or a divided skirt, having neither braces nor bibs.

All of the components of a "suit" must be of the same fabric construction, colour and composition; they must also be of the same style and of corresponding or compatible size. However, these components may have piping (a strip of fabric sewn into the seam) in a different fabric.

If several separate components to cover the lower part of the body are presented together (for example, two pairs of trousers or trousers and shorts, or a skirt or divided skirt and trousers), the constituent lower part shall be one pair of trousers or, in the case of women's or girls' suits, the skirt or divided skirt, the other garments being considered separately.

The term "suit" includes the following sets of garments, whether or not they fulfil all the above conditions :

- morning dress, comprising a plain jacket (cutaway) with rounded tails hanging well down at the back and striped trousers;
- evening dress (tailcoat), generally made of black fabric, the jacket of which is relatively short at the front, does not close and has narrow skirts cut in at the hips and hanging down behind;
- dinner jacket suits, in which the jacket is similar in style to an ordinary jacket (though perhaps revealing more of the shirt front), but has shiny silk or imitation

silk lapels.

- b. The term "ensemble" means a set of garments (other than suits and articles of heading [61.07](#), [61.08](#) or [61.09](#)) composed of several pieces made up in identical fabric, put up for retail sale, and comprising :
- one garment designed to cover the upper part of the body, with the exception of pullovers which may form a second upper garment in the sole context of twin sets, and of waistcoats which may also form a second upper garment, and
 - one or two different garments, designed to cover the lower part of the body and consisting of trousers, bib and brace overalls, breeches, shorts (other than swimwear), a skirt or a divided skirt.

All of the components of an ensemble must be of the same fabric construction, style, colour and composition; they also must be of corresponding or compatible size. The term "ensemble" does not apply to track suits or ski suits, of heading [61.12](#).

4. Headings [61.05](#) and [61.06](#) do not cover garments with pockets below the waist, with a ribbed waistband or other means of tightening at the bottom of the garment, or garments having an average of less than 10 stitches per linear centimetre in each direction counted on an area measuring at least 10 cm x 10 cm. Heading 61.05 does not cover sleeveless garments.
- "Shirts" and "shirt-blouses" are garments designed to cover the upper part of the body, having long or short sleeves and a full or partial opening starting at the neckline. "Blouses" are loose-fitting garments also designed to cover the upper part of the body but may be sleeveless and with or without an opening at the neckline. "Shirts", "shirt-blouses" and "blouses" may also have a collar.
5. Heading [61.09](#) does not cover garments with a drawstring, ribbed waistband or other means of tightening at the bottom of the garment.
6. For the purposes of heading [61.11](#) :
- a. The expression "babies' garments and clothing accessories" means articles for young children of a body height not exceeding 86 cm;
 - b. Articles which are, *prima facie*, classifiable both in heading [61.11](#) and in other headings of this Chapter are to be classified in heading [61.11](#).
7. For the purposes of heading [61.12](#), "ski suits" means garments or sets of garments which, by their general appearance and texture, are identifiable as intended to be worn principally for skiing (cross-country or alpine). They consist either of :
- a. a "ski overall", that is, a one-piece garment designed to cover the upper and the lower parts of the body; in addition to sleeves and a collar the ski overall may have pockets or footstraps; or
 - b. a "ski ensemble", that is, a set of garments composed of two or three pieces, put up for retail sale and comprising :
 - one garment such as an anorak, wind-cheater, wind-jacket or similar article, closed by a slide fastener (zipper), possibly with a waistcoat in addition, and
 - one pair of trousers whether or not extending above waist-level, one pair of breeches or one bib and brace overall.

The "ski ensemble" may also consist of an overall similar to the one mentioned in paragraph a. above and a type of padded, sleeveless jacket worn over the overall.

All the components of a "ski ensemble" must be made up in a fabric of the same texture, style and composition whether or not of the same colour; they also must be of corresponding or compatible size.

8. Garments which are, *prima facie*, classifiable both in heading [61.13](#) and in other headings of this Chapter, excluding heading [61.11](#), are to be classified in heading [61.13](#).
9. Garments of this Chapter designed for left over right closure at the front shall be regarded as men's or boys' garments, and those designed for right over left closure at the front as women's or girls' garments. These provisions do not apply where the cut of the garment clearly indicates that it is designed for one or other of the sexes.
Garments which cannot be identified as either men's or boys' garments or as women's or girls' garments are to be classified in the headings covering women's or girls' garments.
10. Articles of this Chapter may be made of metal thread.



CUSTOMS TARIFF

Notes to Chapter 62

1. This Chapter applies only to made up articles of any textile fabric other than wadding, excluding knitted or crocheted articles (other than those of heading [62.12](#)).
2. This Chapter does not cover :
 - a. Worn clothing or other worn articles of heading [63.09](#); or
 - b. Orthopaedic appliances, surgical belts, trusses or the like (heading [90.21](#)).
3. For the purposes of headings [62.03](#) and [62.04](#) :
 - a. The term "suit" means a set of garments composed of two or three pieces made up, in respect of their outer surface, in identical fabric and comprising :
 - one suit coat or jacket the outer shell of which, exclusive of sleeves, consists of four or more panels, designed to cover the upper part of the body, possibly with a tailored waistcoat in addition whose front is made from the same fabric as the outer surface of the other components of the set and whose back is made from the same fabric as the lining of the suit coat or jacket; and
 - one garment designed to cover the lower part of the body and consisting of trousers, breeches or shorts (other than swimwear), a skirt or a divided skirt, having neither braces nor bibs.

All of the components of a "suit" must be of the same fabric construction, colour and composition; they must also be of the same style and of corresponding or compatible size. However, these components may have piping (a strip of fabric sewn into the seam) in a different fabric.

If several separate components to cover the lower part of the body are presented together (for example, two pairs of trousers or trousers and shorts, or a skirt or divided skirt and trousers), the constituent lower part shall be one pair of trousers or, in the case of women's or girls' suits, the skirt or divided skirt, the other garments being considered separately.

The term "suit" includes the following sets of garments, whether or not they fulfil all the above conditions :

- morning dress, comprising a plain jacket (cutaway) with rounded tails hanging well down at the back and striped trousers;
- evening dress (tailcoat), generally made of black fabric, the jacket of which is relatively short at the front, does not close and has narrow skirts cut in at the hips and hanging down behind;
- dinner jacket suits, in which the jacket is similar in style to an ordinary jacket (though perhaps revealing more of the shirt front), but has shiny silk or imitation silk lapels.

shirt-tapes.

b. The term "ensemble" means a set of garments (other than suits and articles of heading [62.07](#) or [62.08](#)) composed of several pieces made up in identical fabric, put up for retail sale, and comprising :

- one garment designed to cover the upper part of the body, with the exception of waistcoats which may also form a second upper garment, and
- one or two different garments, designed to cover the lower part of the body and consisting of trousers, bib and brace overalls, breeches, shorts (other than swimwear), a skirt or a divided skirt.

All of the components of an ensemble must be of the same fabric construction, style, colour and composition; they also must be of corresponding or compatible size. The term "ensemble" does not apply to track suits and ski suits, of heading [62.11](#).

4. Heading 62.05 and 62.06 do not cover garments with pockets below the waist, with a ribbed waistband or other means of tightening at the bottom of the garment. Heading 62.05 does not cover sleeveless garments.

"Shirts" and "shirt-blouses" are garments designed to cover the upper part of the body, having long or short sleeves and a full or partial opening starting at the neckline. "Blouses" are loose-fitting garments also designed to cover the upper part of the body but may be sleeveless and with or without an opening from the neckline. "Shirts", "shirt-blouses" and "blouses" may also have a collar.

5. For the purposes of heading [62.09](#) :

- a. The expression "babies' garments and clothing accessories" means articles for young children of a body height not exceeding 86 cm;
- b. Articles which are, *prima facie*, classifiable both in heading [62.09](#) and in other headings of this Chapter are to be classified in heading [62.09](#).

6. Garments which are, *prima facie*, classifiable both in heading [62.10](#) and in other headings of this Chapter, excluding heading [62.09](#), are to be classified in heading [62.10](#).

7. For the purposes of heading [62.11](#), the term "ski suits" means garments or sets of garments which, by their general appearance and texture, are identifiable as intended to be worn principally for skiing (cross-country or alpine). They consist either of :

- a. a "ski overall", that is, a one-piece garment designed to cover the upper and the lower parts of the body; in addition to sleeves and a collar the ski overall may have pockets or footstraps; or
- b. a "ski ensemble", that is, a set of garments composed of two or three pieces, put up for retail sale and comprising :
 - one garment such as an anorak, wind-cheater, wind-jacket or similar article, closed by a slide fastener (zipper), possibly with a waistcoat in addition, and
 - one pair of trousers whether or not extending above waist-level, one pair of breeches or one bib and brace overall.

The "ski ensemble" may also consist of an overall similar to the one mentioned in paragraph a. above and a type of padded, sleeveless jacket worn over the overall. All the components of a "ski ensemble" must be made up in a fabric of the same texture, style and composition whether or not of the same colour; they also must be of corresponding or compatible size.

8. Scarves and articles of the scarf type, square or approximately square, of which no side exceeds 60 cm, are to be classified as handkerchiefs (heading [62.13](#)). Handkerchiefs of which any side exceeds 60 cm are to be classified in heading [62.14](#).
9. Garments of this Chapter designed for left over right closure at the front shall be regarded as men's or boys' garments, and those designed for right over left closure at the front as women's or girls' garments. These provisions do not apply where the cut of the garment clearly indicates that it is designed for one or the other of the sexes. Garments which cannot be identified as either men's or boys' garments or as women's or girls' garments are to be classified in the headings covering women's or girls' garments.
10. Articles of this Chapter may be made of metal thread.

Notes to Chapter 64

1. This Chapter does not cover :
 - a. Disposable foot or shoe coverings of flimsy material (for example, paper, sheeting of plastics) without applied soles. These products are classified according to their constituent material;
 - b. Footwear of textile material, without an outer sole glued, sewn or otherwise affixed or applied to the upper (Section [XI](#));
 - c. Worn footwear of heading [63.09](#);
 - d. Articles of asbestos (heading [68.12](#));
 - e. Orthopaedic footwear or other orthopaedic appliances, or parts thereof (heading [90.21](#)); or
 - f. Toy footwear or skating boots with ice or roller skates attached; shin-guards or similar protective sportswear (Chapter [95](#)).
2. For the purposes of heading [64.06](#), the term "parts" does not include pegs, protectors, eyelets, hooks, buckles, ornaments, braid, laces, pompons or other trimmings (which are to be classified in their appropriate headings) or buttons or other goods of heading [96.06](#).
3. For the purposes of this Chapter :
 - a. the terms "rubber" and "plastics" include woven fabrics or other textile products with an external layer of rubber or plastics being visible to the naked eye; for the purpose of this provision, no account should be taken of any resulting change of colour; and
 - b. the term "leather" refers to the goods of headings [41.07](#) and [41.12](#) to [41.14](#).
4. Subject to Note 3 to this Chapter :
 - a. the material of the upper shall be taken to be the constituent material having the greatest external surface area, no account being taken of accessories or reinforcements such as ankle patches, edging, ornamentation, buckles, tabs, eyelet stays or similar attachments;
 - b. the constituent material of the outer sole shall be taken to be the material having the greatest surface area in contact with the ground, no account being taken of accessories or reinforcements such as spikes, bars, nails, protectors or similar attachments.

Subheading Note.

1. For the purposes of subheadings [64.02.1210](#), [64.02.1290](#), [64.02.1910](#), [64.02.1990](#), [64.03.1200](#), [64.03.1900](#) and [64.04.1100](#), the expression "sports footwear" applies only to :
 - a. footwear which is designed for a sporting activity and has, or has provision for the

- a. footwear which is designed for a sporting activity and has, or has provision for the attachment of, spikes, sprigs, stops, clips, bars or the like;
- b. skating boots, ski-boots and cross-country ski footwear, snowboard boots, wrestling boots, boxing boots and cycling shoes.



Notes to Chapter 65

1. This Chapter does not cover :
 - a. Worn headgear of heading [63.09](#);
 - b. Asbestos headgear (heading [68.12](#)); or
 - c. Dolls' hats, other toy hats or carnival articles of Chapter [95](#).
2. Heading [65.02](#) does not cover hat-shapes made by sewing, other than those obtained simply by sewing strips in spirals.

